

hour. Sanctions will be imposed against Defendant in the amount of \$700.00.

Plaintiffs' Motion is **GRANTED**. Defendant Whitney Environmental Consulting, Inc. is ordered to provide verified discovery responses within fifteen (15) days of Notice of Entry of Order. Objections are waived. Plaintiffs are awarded \$700.00 in monetary sanctions, payable by Defendant within 30 days of Notice of Entry of Order. A proposed order has been lodged and will be modified to reflect the Court's ruling.

SHANNON VS. FCA US, LLC, ET AL.

CASE NUMBER: 25CV-0207315

Tentative Ruling on Motion to Compel Deposition: Defendant FCA US LLC and Steward Chrysler Dodge Jeep Ram dba Stewart Dealerships move for an order compelling Plaintiff Nicole Shannon to appear for and proceed with her deposition and to produce the documents described in the deposition notice. The Motion is properly noticed and is unopposed. CCP 2025.450(a) provides:

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

Here, Defendant has established proper service of a deposition notice to Plaintiff on June 11, 2026. No objections were served. Defendant has also established that on the noticed date, June 23, 2026, Plaintiff did not appear for the deposition and did not produce any documents. Defendant is entitled to the relief requested.

Sanctions are mandatory under CCP 2025.450(g)(1). A reasonable hourly rate is determined by the prevailing rate charged to attorneys of similar skill and experience in the relevant community. See *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095. Plaintiff requests sanctions of Defendant requests sanctions of \$3,275.10 consisting of 5.8 attorney hours at \$450 per hour, plus costs of \$60 for the filing fee and \$605.10 for the court reporter. This hourly rate is higher than the prevailing rate for attorneys of similar skill and experience in Shasta County. No evidence has been submitted that competent local counsel could not be retained. Therefore, the Court will award attorney fees at a rate of \$400 per hour. Hours will be reduced by 2, because no opposition was filed and no reply brief was needed. The costs will be awarded. Total sanctions are \$2,185.10.

The Motion to Compel is **GRANTED**. Sanctions of \$2,185.10 are imposed in favor of Defendants against Plaintiff. A proposed order has been lodged and will be modified.

SHANNON VS. FCA US, LLC, ET AL.

CASE NUMBER: 25CV-0207315

Tentative Ruling on Motion to Compel Initial Disclosures and for Sanctions: Plaintiff Nicole Shannon moves for an order compelling Defendant FCA US LLC to produce all documents required under Code of Civil Procedure section 871.26(h). Plaintiff also seeks sanctions of